

DAS DEPARTMENT OF ADMINISTRATIVE SERVICES STATEWIDE POLICY	NUMBER 107-011-150	SUPERSEDES Policy 107-011-150 (2018)
	EFFECTIVE DATE May 20, 2025	PAGE NUMBER Pages 1 of 4
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	DIVISION Enterprise Asset Management	REFERENCE/AUTHORITY • ORS 167.352, 276.094, 276.095, 659A.141, 659A.143 and 659A.400, SB 610 (2013), HB 2732 (2017) • U.S. Department of Justice – ◦ Americans with Disabilities Act (ADA) Requirements – Service Animals ◦ Frequently Asked Questions about Service Animals and the ADA • Job Accommodation Network – Service Animals as Workplace Accommodations • CHRO ADA and Reasonable Accommodations Policy 50-020-10 • Disability Rights Oregon – Service and Assistance Animals in Oregon
POLICY OWNER Operations and Maintenance		
SUBJECT Animals in facilities owned, operated or leased by DAS	APPROVED SIGNATURE Berri Leslie, DAS Director	

PURPOSE

To provide guidance on the term “service animal” as it applies to Titles II and III of the Americans with Disabilities Act (ADA) and where service animals are allowed in facilities owned, operated or leased by the Department of Administrative Services (DAS). This policy does not apply to Title I of the ADA. Employee requests to use a service animal in the workplace fall under the State HR Policy [50-020-10](#), ADA and Reasonable Accommodation in Employment.

APPLICABILITY

Any tenant agencies, employees and visitors occupying facilities owned, operated or leased by DAS.

FORMS/EXHIBITS/INSTRUCTIONS

- [125619 – Service Animal Request for Exception](#)
- [125602 – Project Authorization Request](#)
- [RiskWise – Animals in the Workplace](#)

DEFINITIONS

Animal: a living organism of the animal kingdom that is not a human being or plant.

Assistance animal: has the same meaning as a service animal as authorized in ORS 659A.143.

Service animal: As of March 15, 2011, the ADA Titles II and III only recognize dogs as service animals. A service animal is a dog trained to do work or perform tasks for an individual with a disability as defined under Titles II and III of the ADA. A service animal is not a pet. Dogs whose sole function is “the provision of emotional support, well-being, comfort, or companionship” are not considered service animals under the ADA. An animal individually trained to provide aggressive protection, such as an attack dog, is also not appropriately considered a service animal. There is no definition of service animal under the employment provision (Title I) of the ADA.

EXCEPTIONS AND SPECIAL SITUATIONS FOR MINIATURE HORSES

1. Though not considered service animals, the ADA generally requires businesses to accommodate the use of miniature horses under when four assessment factors are met. Miniature horses generally range in height from 24-34 inches, measured to the shoulders, and generally weigh between 70-100 pounds. Four assessment factors set out in the ADA regulations must be met: (1) whether the miniature horse is housebroken; (2) whether the miniature horse is under the owner’s control; (3) whether the facility can accommodate the miniature horse’s type, size and weight; and (4) whether the miniature horse’s presence will not compromise legitimate safety requirements necessary for safe operation of the facility.
2. DAS considers the use of any animal that is not a service animal a special situation that requires approval. Tenant agencies may seek approval for special situations by submitting a [Service Animal Request for Exception form](#) to DAS Enterprise Asset Management (EAM) Operations and Maintenance at facilities.helpdesk@das.oregon.gov
3. Any modifications to the building as a result of an approved exception request will require project approval by submitting a [Project Authorization Request form](#) to DAS EAM Operations and Maintenance at facilities.helpdesk@das.oregon.gov

EXCLUSIONS, ACCESS AND OTHER SPECIFIC GUIDELINES RELATED TO ANIMALS

1. Employee requests to use a service animal in the workplace fall under the State HR Policy [50-020-10](#), ADA and Reasonable Accommodation in Employment.
2. Animals critical to fulfilling the mission of the agency such as police K9 units, fish or animals in hatcheries, or wild animals in a state park are exempt from this policy.
3. It may be appropriate to exclude a service animal from areas where the animal's presence may compromise a specific environment. For example, a lab facility where presence of the animal may contaminate test results.
4. If necessary, the individual may be asked to remove the service animal from the facility for the following reasons:
 - a. The service animal is out of control and the handler does not take effective action to control it; or
 - b. The service animal is not housebroken.
5. When there is a legitimate reason to ask that a service animal be removed, staff must offer the person with a disability the opportunity to obtain goods or services without the service animal's presence.
6. Damage caused by a guest, a service animal or any animal that is not a service animal is the responsibility of the handler.
7. Animals, whether service animals, or animals for emotional support, well-being, comfort or companionship (i.e., pets), may be kept in an employee's or visitor's personal vehicle within parking structures or parking lots under the following conditions:
 - a. The environmental conditions within the structure or lot and the vehicle are within acceptable limits to ensure the well-being of the animal.
 - b. The animal does not bark, cry or create an excessive disturbance in any way.
 - c. If taken out of the vehicle, the animal is always kept in control by the employee or visitor. Damage to property or harm caused to others by the animal is the sole liability of the employee or visitor.
 - d. Any waste generated by the animal is cleaned up immediately by the employee or visitor.
 - e. Compliance with the above conditions is in the sole judgment of DAS EAM Operations and Maintenance or DAS EAM Parking Services. Failure to follow DAS directions to remove an animal from a parking structure or lot may result in rescission of an employee's parking assignment or disciplinary action.

GENERAL INFORMATION

1. Service animals are allowed in DAS-owned, operated or leased facilities where the public is normally allowed to go, if the animal:
 - a. Is a service animal; trained and required to assist an individual with a disability.
 - b. Is in training to become a service animal and is accompanied or directed by its trainer.
 - c. Resides or is brought into a facility for educational, therapy or laboratory purposes.
 - d. Is harnessed, leashed, or tethered except when performing work or tasks where such tethering would interfere with the animal's ability to perform. In these cases, the animal must be controlled with voice commands, signals or other means.

2. Staff are not required to provide care, food or supervision for a service animal or a service animal trainee.
3. When it is not obvious what service the animal provides, staff may ask only the following two questions:
 - a. Is the animal required because of a disability?
 - b. What work or task has the animal been trained to perform?
4. Staff may not:
 - a. Ask about the person's disability.
 - b. Require medical documentation, require a special identification card or training documentation for the service animal, or ask that the animal demonstrate its ability to perform the work or task.
 - c. Charge an admission fee for a service animal or service animal trainee.
5. Animals in the workplace must be housebroken and meet the requirements of any other local laws imposed on animals.